

25STCV12657 25STCV12657

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 25STCV12657 Hearing Date: September 17, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 20

Hearing Date: September 17, 2026

Case Name: Daniel Espinoza

v. General Motors, LLC

Case No.: 25STCV12657

Motion: Motion for

Compliance Pursuant to CCP 871.26;

Request for Sanctions

Moving Party: Defendant General

Motors, LLC

Responding Party: Plaintiff Daniel Espinoza

Notice: OK

Ruling: The Motion for

Compliance Pursuant to CCP 871.26 and Request for Monetary Sanctions is
GRANTED.

Moving party to
give notice.

The Court encourages all parties to appear remotely via LA
CourtConnect. If submitting on the
Court's tentative ruling, please follow the instructions provided above.

BACKGROUND

This
is a lemon law action arising out of Daniel Espinoza's ("Plaintiff" or "Espinoza")
purchase of a 2020 Chevrolet Malibu ("Vehicle"). On April 30, 2025, Espinoza filed the instant
action against General Motors, LLC ("Defendant" or "GM") as the manufacturer
and/or distributor of the Vehicle and Does 1 through 10 asserting the following
causes of action: (1) violation of Civil Code section 1793.2, subdivision
(d), (2) violation of Civil Code section 1793.2, subdivision (b), (3) violation
of Civil Code section 1793.2, subdivision (a)(3), (4) breach of implied warranty
of merchantability (Civil Code sections 1791.1, 1794, 1795.5), and (5) fraudulent
inducement – concealment.

On
August 7, 2025, Defendant filed a Demurrer to the Complaint. On September 17, 2025, Plaintiff filed the
operative First Amended Complaint ("FAC") and the hearing on the Demurrer was
vacated. On October 30, 2025, Defendant
filed an Answer.

On
May 13, 2026, Defendant filed the instant Motion for Compliance Pursuant to
Code of Civil Procedure section 871.26 and Request for Monetary Sanctions of \$1,500
("Motion"). Plaintiff filed an
Opposition on September 3, 2026, and Defendant filed a Reply on September 10,
2026.

DISCUSSION

Applicable
Law

In a civil action seeking

restitution or replacement of a motor vehicle, “[w]ithin 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours” including the deposition of the plaintiff in the action.

(Code Civ. Proc., §871.26, subd. (c)(1).)

“Unless

the party failing to comply with this section shows good cause” a court must impose monetary sanctions in the amount of \$1,500 against the plaintiff’s attorney, to be paid within 15 business days for failure to comply with the deposition requirement.

Application

to Facts

Defendant GM moves for an order requiring Plaintiff Espinoza to appear for an initial deposition as required by Code of Civil Procedure section 871.26, subdivision (c)(1) within ten (10) days of the Court’s order and for imposition of the mandatory \$1,500 sanction against Plaintiff’s counsel pursuant to section 871.26, subdivision (j)(2).

Plaintiff filed the lawsuit on April 30, 2025, and GM filed its responsive pleading, a demurrer, on August 7, 2025. Defendant served a notice setting Plaintiff’s deposition for September 15, 2025. Plaintiff objected that the date had been selected unilaterally and represented that he would meet and confer to reschedule the deposition for a mutually convenient date. Defendant made attempts to meet and confer regarding an alternative deposition date but did not receive any response to its communications. Defendant argues that Plaintiff failed to participate in the statutorily mandated initial deposition within 120 days of the responsive pleading and failed to provide any alternative dates despite multiple meet-and-confer efforts. Plaintiff’s deposition remains outstanding.

Plaintiff’s counsel opposes the Motion, asserting that his office has been unable to contact Plaintiff since January 2026 despite repeated telephone calls, emails, and written notices, warning Plaintiff of the consequences for failure to respond. Plaintiff’s counsel does not dispute that the deposition remains outstanding but requests a continuance of approximately 30 days to allow further efforts to re-establish contact with Plaintiff. Counsel also opposes sanctions arguing that efforts to establish contact with Plaintiff constitute “good cause” and excuse lack of compliance.

In its Reply, Defendant argues that losing contact with a client does not constitute "good cause" under section 871.26, subdivision (j)(2) and that counsel has had eight months to evaluate next steps. Defendant contends the statute requires imposition of sanctions when Plaintiff fails to appear absent demonstrated good cause.

Having reviewed the moving papers, opposition, and reply, the Court makes the following findings. The parties do not dispute that section 871.26 applies to this action and Plaintiff's deposition remains outstanding. Defendant filed its responsive pleading on August 7, 2025. The 120-day statutory period expired in December 2025 without completion of Plaintiff's deposition. Defendant attempted to obtain alternative dates after Plaintiff objected to the original notice, but no date was provided and no deposition occurred.

Plaintiff's unavailability does not eliminate his obligation to participate in the deposition. Nevertheless, the record supports allowing more than the 10 days for compliance. Plaintiff's counsel has not re-established contact with Plaintiff and trial is not scheduled until July 10, 2028. A 30-day compliance period balances the statutory requirement for an early deposition against the practical need for counsel to communicate this order to Plaintiff. Accordingly, Defendant's motion for compliance is granted. Plaintiff is ordered to appear for an initial deposition on a date mutually agreed upon by the parties, no later than 30 days after the Court's order.

The Court also finds that monetary sanctions are warranted. The deposition was required to be completed in December 2025. Plaintiff's counsel's documented efforts to restore communication began in January 2026, after the statutory period for compliance had expired. Plaintiff's counsel does not explain why he failed to provide alternative dates before the deadline or why he failed to respond to Defendant's communications to set an alternative date for the deposition. Furthermore, there is no evidence that Plaintiff's counsel advised Defendant regarding his efforts to reach Plaintiff prior to filing the Opposition. Thus, the Court does not find that Plaintiff's counsel has demonstrated good cause sufficient to avoid the mandatory sanctions prescribed by section 871.26, subdivision (j)(2). For the foregoing reasons, Defendant's

request for monetary sanctions , and the court will award \$1,000 in monetary sanctions.

CONCLUSION

Defendant General Motors, LLC's Motion for Compliance Pursuant to Code of Civil Procedure section 871.26 is GRANTED. Plaintiff Daniel Espinoza is ordered to appear for an initial deposition on a date mutually agreed upon by the parties, no later than 30 days after service of the Court's order.

Defendant's request for monetary sanctions is also granted. Strategic Legal Practices, APC shall pay \$1,000 to Defendant General Motors LLC within 15 business days after service of this order.

Moving party to give notice.